

PERFORMANCE WORK STATEMENT (PWS)
FOR
LABORATORY TESTING SERVICES

1.0 General:

1.1 Scope: The contractor shall provide all personnel, equipment, tools, materials, supervision, and quality control necessary, except as specified in Paragraph 3.0 as Government Furnished, to perform Laboratory Testing Services, as defined in this PWS.

1.1.1 RESERVED

1.2 Background: Mansfield Lahm Air National Guard Base (hereby referred to as the installation) requires testing of stormwater at four (4) outfalls on base for reporting to the Ohio EPA in accordance with the installation's individual NPDES Permit. Additionally, annual hazardous waste profile testing is directed by the Installation Hazardous Waste Management Plan. Test facility must be located within 60 miles from the 179th Airlift Wing, 1947 Harrington Memorial Road, Mansfield, Ohio 44903.

1.3 Period of Performance (PoP): The Period of Performance shall be 1 Base Year of 12 months and Three (3) 12-month option years.

1.4 General Information:

1.4.1 Place and Performance of Services: The contractor shall provide services between the hours of 0900 - 1700 on Monday through Friday, except on recognized US holidays. The contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS. When hiring personnel, the contractor shall keep in mind that the stability and continuity of the work force are essential.

1.4.1.1 Telework: Not Applicable.

1.4.1.2 Unscheduled gate closures by the Security Police may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays. Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee's installation driving privileges.

1.4.1.3 The contractor's employees shall become familiar with and obey the regulations of the installation; including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to

do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times and shall be subject to such checks as may be deemed necessary. The contractor shall ensure compliance with all regulations and orders of the installation, which may affect performance. The Government reserves the right to direct the removal of an employee from Government property or revoke access to Government systems for misconduct, security reasons, or any overt evidence of communicable disease. Removal of contractor employees for reasons stated above does not relieve the Contractor from responsibility for total performance of this contract.

1.4.1.4 All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I Awareness training within calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within calendar days after completion of training by all employees and subcontractor personnel. AT level I Awareness training is available at the following website: <http://jko.jten.mil>.

1.4.1.5 Contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.4.1.6 Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative); or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

1.4.2 Recognized Holidays: The following are recognized United States (US) holidays. The contractor shall not perform services on these days:

1.4.2.1 New Year's Day: January 1st

1.4.2.2 Martin Luther King, Jr.'s Birthday

1.4.2.3 President's Day

1.4.2.4 Memorial Day

1.4.2.5 Juneteenth National Independence Day: June 19th

1.4.2.6 Independence Day: July 4th

- 1.4.2.7 Labor Day
- 1.4.2.8 Columbus Day
- 1.4.2.9 Veteran's Day: November 11th
- 1.4.2.10 Thanksgiving Day
- 1.4.2.11 Christmas Day: December 25th

1.4.3 Quality Control (QC): The contractor shall develop and maintain an effective QC Plan (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's QCP is the means by which it assures itself that its work complies with the requirements of the contract. As a minimum, the contractor shall develop QC procedures that address the areas identified in Technical Exhibit 1, Performance Requirements Summary (PRS). A final QCP shall be submitted to the Contracting Officer Representative (COR) NLT 10 days after contract award. After acceptance of the QCP, the contractor shall obtain the Contracting Officer's (KO's) acceptance in writing of any proposed changes to its QCP. An existing company QCP that meets the requirements of 40 CFR 260.11, ASTM, and Ohio EPA standards is sufficient.

1.4.4 Quality Assurance (QA): The Government will evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government will do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and acceptable quality level(s) or defect rate(s).

1.4.5 RESERVED

1.4.6 RESERVED

1.4.7 Special Qualifications: The contractor shall ensure all employees possess all required licenses for operating test equipment and conducting the tests in the performance of this contract. Contractors must ensure that any personnel performing under a contract are fully trained, licensed, certified, and otherwise qualified to provide services.

1.4.7.1 The Contractor must be recognized as a qualified testing agency by the State of Ohio. All tests shall be conducted in accordance with the test method stipulated in the Installation's NPDES permit dated 26 August 2024, Part III, Paragraph 5.

1.4.8 Post Award Conference/Periodic Progress Meetings: The contractor agrees to attend any post award conference convened by the KO in accordance with FAR 42.5. The KO, COR and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings, the KO will apprise the contractor of how the Government views the contractor's performance and the contractor shall apprise the Government of problems, if any, being experienced.

The contractor shall resolve outstanding issues raised by the Government. Contractor attendance at these meetings shall be at no additional cost to the Government.

1.4.9 Contract Manager (CM): The contractor shall designate a CM who shall ensure performance under this contract. The name of this person, and an alternate who shall act for the contractor when the CM is absent, shall be designated in writing to the KO. The CM or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The CM shall work through the COR to resolve issues, receive technical instructions, and ensure adequate performance of services. The CM shall ensure that contractor employees do not perform any services outside the scope of the contract without an official modification issued by the KO. The CM shall ensure contractor employees understand that services performed outside the scope of the contract are performed wholly at the expense of the contractor.

1.4.10 Identification of Contractor Employees: All contractor personnel attending meetings, answering Government telephones and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government employees. The contractor shall ensure that all documents or reports produced by contractor personnel are suitably marked as contractor products or that contractor participation is appropriately disclosed. The contractor's status as a "contractor" shall be predominantly displayed in all correspondence types (to include signature blocks on e-mail) and dealings with Government or non-Government entities. Contractor personnel shall wear identification badges distinguishing themselves as such. The badges shall have the company name, employee name and the word "contractor" displayed.

1.4.11. Combating Trafficking in Persons: The United States Government has adopted a zero-tolerance policy regarding trafficking in persons. Contractors and contractor employees shall not engage in severe forms of trafficking in persons during the period of performance of the contract; procure commercial sex acts during the period of performance of the contract; or use forced labor in the performance of the contract. The Contractor shall notify its employees of the United States Government's zero tolerance policy, the actions that will be taken against employees for violations of this policy. The contractor shall take appropriate action, up to and including termination, against employees or subcontractors that violate the US Government policy as described at FAR 22.17.

1.4.12 RESERVED

1.4.13 RESERVED

1.4.14 Organizational Conflicts of Interest (OCI): The contractor and subcontractor personnel performing services under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or

subsequent OCIs, as defined in FAR Subpart 9.5. The contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO. In the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may impose other remedies as he or she deems necessary, including prohibiting the contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.4.15 RESERVED

2.0 Definitions and Acronyms:

2.1 Definitions:

2.1.1 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2 Defective Service: A service output that does not meet the standard of performance associated with the PWS.

2.1.3 Deliverable: Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.4 Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.5 Physical Security: Actions that prevent the loss or damage of Government property.

2.1.6 Quality Assurance: The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.7 Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.8 Quality Control: All necessary measures taken by the Contractor to ensure that the quality of an end product or service shall meet contract requirements.

2.1.9 Subcontractor: One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.2 Acronyms:

CM	Contract Manager
COR	Contracting Officer Representative
DFARS	Defense Federal Acquisition Regulation Supplement
DoD	Department of Defense
EMO	Environmental Management Office
FEM	Federal Environmental Manager
FAR	Federal Acquisition Regulation
GFP/M/E/S	Government Furnished Property/Material/Equipment/Services
HSPD	Homeland Security Presidential Directive
KO	Contracting Officer
NGB	National Guard Bureau
NLT	No Later Than
POC	Point of Contact
PQL	Practical Quantitation Level
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
SCR	Service Contract Reporting
SEO	State Environmental Officer
SSN	Social Security Number
TE	Technical Exhibit

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S):
The Government will provide the property, material, equipment, and/or services listed below solely for the purpose of performance under this contract:

3.1 Property: NONE

3.2 Materials: NONE

3.3 Equipment: NONE

3.4 Services: NONE

3.5 Utilities: NONE

4.0 Contractor Furnished Property, Materials, and Equipment (CFP/M/E):

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

4.2 RESERVED

4.3 RESERVED

5.0 Requirements:

5.1 The Government shall provide the contractor with a sampling plan detailing parameters to be tested for the base year and all option years. This plan is located in Exhibit 2 “Deliverables Schedule”.

5.2 Contractor shall provide unit pricing for all tests and analyses listed in Exhibit 2 “Deliverables Schedule”.

5.3 Contractor shall provide the Environmental Management Office (EMO) with sample collection containers as requested for scheduled samples within 48 hours of a request from the EMO.

5.4 The Government will collect all samples for testing and analysis.

5.5 Contractor shall provide a means to receive the samples. The government is responsible for the pickup and transportation of all samples from the installation to the contractor's facility.

5.6 Contractor shall provide the EMO with a sufficient supply of Chain of Custody forms and document the chain of custody between the installation and the contractor's test facility.

5.7 Contractor shall perform all tests and analyses requested by the EMO in accordance with 40 CFR 260.11, ASTM, and Ohio EPA standards for environmental testing.

5.8 Contractor shall provide a report of test results. Reports shall be delivered electronically to the Federal Environmental Manager (FEM) within fifteen (15) business days from receipt of the collected samples. Separate reports for each waste stream or stormwater outfall shall be prepared. Reports shall be in the form of a Certificate of Analysis containing the following information. Any non-applicable items should be marked as “N/A” or documented in a footnote:

5.8.1 Sample Identification: Identify with the waste stream or outfall number for each report.

5.8.2 Date of sample receipt

5.8.3 Date and time of sample collection along with the initials of the person collecting the sample

5.8.4 Sampled matrix

5.8.5 Number of containers

5.8.6 Collection method

5.8.7 For each analysis in the report the contractor shall provide the following:

5.8.7.1 Name of Analyte

5.8.7.2 Analytical Method

5.8.7.3 Preparation Method

5.8.7.4 Quantitative result

5.8.7.5 Units of measurement

5.8.7.6 Practical Quantitation Level (PQL)

5.8.7.7 Identification of analyst

5.8.7.8 Analysis start date and time

5.8.7.9 Extraction date

5.8.7.10 Validation date

5.8.8 All reports shall be certified by a company representative with the proper authority to do so.

5.9 RESERVED

6.0 Applicable Publications: Publications applicable to this PWS are listed below:

Publication (Chapter/Page)	Date of Publication	Mandatory or Advisory	Website
Federal Acquisition Regulation		Mandatory	https://www.acquisition.gov/?q=browsefar
Defense Federal Acquisition Regulation Supplement		Mandatory	http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html or https://www.acquisition.gov/dfars
40 CFR 260.11		Mandatory	https://gov.ecfr.io/cgi-bin/ECFR
Individual NPDES Permit #2IN00189*GD	26 Aug 2024	Mandatory	

6.1 Applicable Forms: Forms applicable to the PWS are listed below:

Form	Date	Website
NONE		

TECHNICAL EXHIBIT 1

Performance Requirements Summary (PRS)

Performance Objective	Performance Standard	Acceptable Quality Levels (AQL)	Surveillance Method / By Whom
5.3 Provide sample collection containers upon request of the EMO	Containers shall be prepared for collection and available for pick up by the EMO within 48 hours of request by the EMO.	Zero missing containers upon receipt.	Visual Inspection / SEO
5.6 Document the chain of custody between the installation and the contractor's test facility.	Completed chain of custody paperwork shall be provided to the EMO upon receipt of collected samples.	100% complete documentation at every drop off.	Record Review / COR
5.8 Provide a report of test results.	Report shall be sent to the EMO within 15 business days from receipt of collection samples	90% on schedule.	Record Review / COR
5.8 Reports shall be in the form of a Certificate of Analysis with complete information	Report shall contain all items listed in paragraphs 5.8.1 – 5.8.8. Any non-applicable items should be marked as "N/A" or documented in a footnote.	100% complete documentation on every report.	Record review / COR

TECHNICAL EXHIBIT 2

Deliverables Schedule

PWS Reference / Deliverable Title	Frequency	Number of Copies	Medium/Format	Submit To
1.4.3 Quality Control Plan	NLT 10 days after contract award.	1	Electronic	COR
1.4.9 Contract Manager Information	NLT 10 days after contract award.	1	Electronic	COR
5.6 Chain of Custody Documentation	Upon receipt of collected samples at the contractor's test facility.	1	Electronic / Utilize form created by contractor	COR
5.8 Certificate of Analysis	Within 15 business days from receipt of collection samples	1	Electronic / Utilize form created by contractor	COR

TEST PLAN BASE YEAR (2026)

Waste Characterization Test Parameters	Number of Analyses
Ignitability	2
pH	2
TCLP Metals	8
Total Halogens	1
Storm Water Test Parameters	Number of Analyses
Benzene, Toluene, Ethylbenzene, Xylene	8
Biochemical Oxygen Demand	8
Chemical Oxygen Demand	8
Phenol and Naphthalene	3
Oil and Grease, Total	30
Priority Pollutants	1
Total Organic Carbon	8
Total Suspended Solids	30

TEST PLAN OPTION YEAR 1 (2027)

Waste Characterization Test Parameters	Number of Analyses
Ignitability	4
pH	4
TCLP Metals	6
Total Halogens	1
Storm Water Test Parameters	Number of Analyses
Benzene, Toluene, Ethylbenzene, Xylene	12
Biochemical Oxygen Demand	12
Chemical Oxygen Demand	12
Phenol and Naphthalene	4
Oil and Grease, Total	42
Priority Pollutants	1
Total Organic Carbon	12
Total Suspended Solids	42

TEST PLAN OPTION YEAR 2 (2028)

Waste Characterization Test Parameters	Number of Analyses
Ignitability	4
pH	4
TCLP Metals	5
Total Halogens	1
Storm Water Test Parameters	Number of Analyses
Benzene, Toluene, Ethylbenzene, Xylene	12
Biochemical Oxygen Demand	12
Chemical Oxygen Demand	12
Phenol and Naphthalene	4
Oil and Grease, Total	42
Priority Pollutants	1
Total Organic Carbon	12
Total Suspended Solids	42

TEST PLAN OPTION YEAR 3 (2029)

Waste Characterization Test Parameters	Number of Analyses
Ignitability	2
pH	2
TCLP Metals	3
Total Halogens	0
Storm Water Test Parameters	Number of Analyses
Benzene, Toluene, Ethylbenzene, Xylene	12
Biochemical Oxygen Demand	12
Chemical Oxygen Demand	12
Phenol and Naphthalene	4
Oil and Grease, Total	42
Priority Pollutants	1
Total Organic Carbon	12
Total Suspended Solids	42